

		4:23.) In opposition, Plaintiff also argues that Defendants agreed on a shifting landscape of promises to complete the project but failed to live up to one of the promises. Yet Defendants lacked reasonable ground for believing the promises were true. (Opp., p. 14:19-22 [citing the FAC, at ¶¶ 25-78, 81-85, and 93- 95].) Thus, this claim is based on inaccurate representations of capability, progress, and timelines. The statements regarding expertise and the present status of the swap are actionable misrepresentations. Plaintiff handed over more money as the time went on and alleges that \$15,000 in new parts were “aged-out” and had to be replaced. (FAC, at ¶ 45.) The status of the work is a representation about present facts, that induced Plaintiff to spend money on parts that he otherwise would not have spent. Thus, the FAC has sufficiently alleged a claim. The demurrer as to the fourth cause of action is overruled. <u>Unfair Business Practice (Bus & Prof. Code, § 17200, et seq.) (Fifth Cause of Action)</u> Business and Professions Code section 17200, et seq. (“UCL”) prohibits unfair competition, including unlawful, unfair or fraudulent business acts. (<i>Cel-Tech Comm., Inc. v. Los Angeles Cellular Tele. Co.</i> (1999) 20 Cal.4th 163, 180.) By defining “unfair competition” to include any unlawful act or practice, the UCL permits violations of other laws to be treated as independently actionable as unfair competition. <i>Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.</i>, (1999) 20 Cal.4th 163, 180.) Here, Plaintiff relies on the negligent misrepresentation claim as the basis for the unfair business practices. Thus, the court overrules the demurrer on this derivative claim. The case management conference is continued to October 9, 2026, at 9 am, in this Department. Defendants shall give notice of the ruling of the continued case management conference.
56	Merchant Capital Source, LLC v. Pima Orthopedic Physicians, LLC, et al. 30-2023-01304251	Hearing on motion to compel compliance with bank levy (reservation no. 74763450) taken off-calendar per 5/8/2026 Order.
57	Nemat, et al. v. Corselli, et al. CVRI12406049	Plaintiffs Mona Nemat and Ali Nemat’s motion to compel Defendant Stanley Wong’s further response to request for production of documents, set one, no. 1, is denied. <u>Legal Standard</u>

A party responding to an inspection demand must respond with (1) a statement that it will comply, (2) a representation that it does not have the ability to comply, or (3) an objection. (Code Civ. Proc., § 2031.210, subd. (a).) On receipt of the response to a document demand, the demanding party may move to compel a further response if any of the following apply: (1) a statement of compliance is incomplete; (2) a representation of inability to comply is inadequate, incomplete or evasive; (3) an objection is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a).)

The motion must set forth specific facts showing good cause justifying the discovery, and it must be accompanied by a separate statement. (Code Civ. Proc., § 2031.310, subd. (b); Cal. Rules of Court, rule 3.1345.) Absent a claim of privilege or attorney work product, the burden of showing good cause may be met by a fact-specific showing of relevance. (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2025) ¶ 8:1495.6.) To establish “good cause,” the burden is on the moving party to show both: relevance to the subject matter (e.g., how the information in the documents would tend to prove or disprove some issue in the case); and specific facts justifying discovery (e.g., why such information is necessary for trial preparation or to prevent surprise at trial). (*Glenfed Develop. Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117; see *Kirkland v. Superior Court (Guess?, Inc.)* (2002) 95 Cal.App.4th 92, 98.) “If ‘good cause’ is shown by the moving party, the burden is then on the responding party to justify any objections made to document disclosure” (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2025) ¶ 8:1496.)

Merits

Plaintiffs move to compel Wong to produce documents responsive to no. 1 of their first set of request for production of documents. Plaintiffs asked Wong to produce:

All DOCUMENTS constituting or relating to insurance policies providing or potentially providing coverage for the OPEN LOT, the residence at 3841 Collis Ave., or the Apartment Building at 170 W. Avenue 26th, in effect at any time from January 1, 2022 to the present, including but not limited to: a) Policy declarations pages; b) Coverage forms; c) Endorsements; d) Exclusions; e) Premium notices; f) Correspondence with insurers.

Wong responded:

	Objection. This request is overbroad, seeks irrelevant documents, and is not proportional to the needs of the case. Discovery must be reasonably calculated to lead to admissible evidence and may not be used as a “fishing expedition” into unrelated or private matters. (<i>Calcor Space Facility, Inc. v. Superior Court</i> (1997) 53 Cal.App.4th 216, 222; <i>Colonial Life & Accident Ins. Co. v. Superior Court</i> (1982) 31 Cal.3d 785, 790.) The only property at issue in this action is the OPEN LOT. Insurance policies concerning 3841 Collis Avenue or 170 W. Avenue 26th are irrelevant. Subject to and without waiving objections, Defendant states that the OPEN LOT was not insured during the relevant time period. Accordingly, after a diligent search and reasonable inquiry, Defendant has no responsive non-privileged documents in his possession, custody, or control. Plaintiffs do not dispute that the only property at issue is the “OPEN LOT,” and not the “residence at 3841 Collis Ave.,” or the “Apartment Building at 170 W. Avenue 26th.” However, Plaintiffs contend that insurance policies providing or potentially providing for coverage at the latter two properties are still discoverable. Plaintiffs assert that they “may obtain discovery of the existence and contents of any agreement under which any insurance carrier may be liable to satisfy a judgment against Defendant”; and this “reasonably includes policies insuring Defendant’s other properties, which may extend coverage to undeveloped land like the Lot.” (Mot., at p. 1 [citing Code Civ. Proc., § 2017.210; <i>Bianchi v. Westfield Ins. Co.</i> (1987) 191 Cal.App.3d 287].) However, Wong has already responded with an inability to comply on the grounds that, “the OPEN LOT was not insured during the relevant time period.” Under Code of Civil Procedure section 2017.210, a party may obtain “discovery of the existence and contents of any agreement under which any insurance carrier may be liable to satisfy in whole or in part a judgment that may be entered in the action or to indemnify or reimburse for payments made to satisfy the judgment.” (Code Civ. Proc., § 2017.210.) The request as drafted seeks documents “providing or potentially providing coverage for the residence at 3841 Collis Ave., or the Apartment Building at 170 W. Avenue 26th,” without regard to whether they may include provisions that could apply to the subject lot. Plaintiffs have not shown good cause for this overly-broad request. Accordingly, the motion is denied. The case management conference is continued to June 5, 2026, at 10 am in this Department. Wong shall give notice of the ruling and of the continued case management conference.
--	--

58	Sowersby v. Molina, et al. 30-2025-01513523	Defendant Lyft, Inc.'s motion for order compelling Plaintiff Justin Sowersby to arbitrate his claims against Lyft in this action, is granted. <u>The Federal Arbitration Act ("FAA")</u> The FAA (9 U.S.C. §§ 1-14) governs contractual arbitration in written contracts involving interstate or foreign commerce or maritime transactions. (9 U.S.C. §§ 1, 2.) Here, Lyft has met its burden of showing that the FAA applies. (Carr Decl., Exh. 8 § 17; see <i>Allied-Bruce Terminix Cos., Inc. v. Dobson</i> (1995) 513 U.S. 265, 277; <i>Shepard v. Edward Mackay Enterprises, Inc.</i> (2007) 148 Cal.App.4th 1092, 1097.) The delegation analysis is the same under the FAA and the California Arbitration Act. (<i>Tiri v. Lucky Chances, Inc.</i> (2014) 226 Cal.App.4th 231, 240-242.) <u>Delegation</u> Arbitration is a matter of contract. A party cannot be required to submit to arbitration any dispute which he or she has not agreed so to submit. (<i>AT&T Technologies v. Communications Workers</i> (1986) 475 U.S. 643, 648.) Plaintiff does not dispute the existence of the agreement to arbitrate but only whether the agreement to arbitrate: (1) should not be enforced due to the possibility of inconsistent results enforceable and (2) encompasses motor vehicle accidents. (See Opp., at pp. 2-9.) Lyft argues that the arbitrator, not the court, must decide if the claims in the Complaint are arbitrable. (Mot., at pp. 12-13.) Courts presume that the parties intend courts, not arbitrators, to decide disputes about arbitrability. (<i>UBC Group PLC v. Republic of Argentina</i> (2014) 572 U.S. 25, 34.) The question whether the parties agreed to arbitrate the particular dispute is to be decided by the court, not the arbitrator, unless the parties clearly and unmistakably provide otherwise. (<i>First Options of Chicago, Inc. v. Kaplan</i> (1995) 514 U.S. 938, 944; <i>Ajamian v. CantorCO2e, L.P.</i> (2012) 203 Cal.App.4th 771, 781-782.) When the parties have agreed to an arbitration provider's rules and the rules include the arbitrator's power to determine arbitrability, the parties' intent to delegate is clear and unmistakable. (<i>Greenspan v. LADT, LLC</i> (2010) 185 Cal.App.4th 1413, 1442, 1443; <i>Dream Theater, Inc. v. Dream Theater</i> (2004) 124 Cal.App.4th 547, 553, 557; <i>Aanderud v. Superior Court</i> (2017) 13 Cal.App.5th 880, 893.) Here, Lyft has presented an arbitration agreement which provides in relevant part:
----	--	--